2019 C L C 777

[Lahore]

Before Muhammad Farrukh Irfan Khan, J

ZESHAN IFTIKHAR BUTT----Petitioner

Versus

Mst. MARIA ASIF and others----Respondents

Writ Petition No. 30974 of 2014, 31430 of 2012 and C.M. No. 1 of 2013, decided on 6th January, 2015.

Family Courts Act (XXXV of 1964)---

----S. 5---Dissolution of Muslim Marriages Act (VIII of 1939), S.2(ii)---Constitution of Pakistan, Art. 199---Constitutional petition---Non-consummation of marriage---Effect---Maintenance allowance, recovery of---Deferred dower---Scope---Petitioner was ex-husband of respondent and he was aggrieved of judgment and decree passed against him by Trial Court as well as Lower Appellate Court---Validity---Deferred dower became due after dissolution of marriage either by death or divorce---Marriage between parties was dissolved therefore, deferred dower had become due on part of petitioner---Wife could claim dissolution of marriage even other than ground of Khula---Respondent sought dissolution of marriage on grounds of non-payment of maintenance allowance and she successfully proved the same---Courts below were not right to direct respondent to forego her dower---Marriage having not been consummated therefore, both courts below had rightly decreed half of the dower amount---High Court declined to interfere in the concurrent judgments passed by two courts below as there was no illegality or irregularity---Constitutional petition was dismissed in circumstances.

Mst. Shamim Akhtar v. Additional District Judge, Sialkot and another 1991 CLC 1142 rel.

M. Aqeel Wahid for Petitioner.

Tahir Ameen Ch. for Respondent No.1.

ORDER

MUHAMMAD FARRUKH IRFAN KHAN, J.----Succinctly the facts of the case are that respondent No.1 filed a suit for dissolution of marriage, recovery of maintenance allowance and dower against the petitioner alleging therein that her Nikah was solemnized with the petitioner in consideration of dower of Rs.200,5000/- out of which an amount of Rs.5000/- was prompt dower which was paid at the time of Nikah, whereas, the remaining amount was deferred dower; that according to condition No.20 of the Nikahnama the petitioner was also bound to pay the wife Rs.20,000/- per month as maintenance allowance; that at the time of

Nikah it was settled between the parties that Rukhsati shall take place when the petitioner would arrange for her VISA of France; that defendant neither arranged VISA as per his commitment nor paid any maintenance allowance, therefore, for his own fault she could not live with the petitioner within the limits prescribed by Allah Almighty. She sought decree for dissolution of marriage on the ground of non-payment of dower and maintenance allowance.

2. The petitioner contested the suit by raising certain preliminary as well as factual objections. Out of the divergent pleadings of the parties, learned Judge Family Court framed necessary issues, recorded evidence thereupon and decreed the suit vide impugned judgment dated 28.02.2013 in the following terms:-

> "In the light of my findings on the above said issues, the suit in hand is hereby partially decreed in favour of the plaintiff and against the defendant. The plaintiff is held entitled for the decree of dissolution of marriage on the ground of non-payment of maintenance allowance. The plaintiff is entitled to recover maintenance allowance as Rs.20,000/- per month from the date of nikah i.e. 25.12.2008 till her iddat period. Plaintiff is entitled for half dower amount Rs.10,00,000/- (one million) from the defendant."

3. Against the aforesaid judgment and decree the petitioner preferred appeal which was dismissed by the learned Appellate Court vide impugned judgment dated 01.10.2014. Being aggrieved the petitioner has filed instant writ petition.

4. Learned counsel for the petitioner submits that both the courts below committed material illegality and irregularity while passing impugned judgments and decrees; that it is an admitted fact that marriage between the parties was not consummated, therefore, the petitioner was not obliged to pay maintenance allowance to the respondent; that as the petitioner was not legally bound to pay maintenance allowance, therefore, on that basis suit of respondent for dissolution of marriage cannot be decreed; that at the most learned Judge Family Court could grant her decree for dissolution of marriage on the ground of Khula and in that eventuality, she had to forego the dower amount; that evidence in this case has not been properly appreciated and the conclusions drawn therefrom are liable to be set-aside.

5. Conversely, learned counsel for respondent No.1 submits that the impugned judgments and decrees are well reasoned; that according to condition No.20 of Nikahnama it was settled between the parties that the petitioner would give Rs.20,000/- per month to respondent as maintenance allowance; that admittedly no maintenance allowance was paid, therefore, both the courts below were fully justified in decreeing the suit of respondent for dissolution of marriage on the ground of non-payment of maintenance allowance and no exception can be taken therefrom.

5. I have heard the arguments advanced by the learned counsel for the parties and gone through the record.

6. It is not disputed fact that according to condition No.20 of the Nikahnama the petitioner was required to pay monthly maintenance allowance of Rs.20,000/- to the

respondent . No where it was stipulated that responsibility of payment of monthly maintenance would start from the date of consummation of marriage. It is settled principle of law that marriage is a civil contract and any obligation arising thereunder is enforceable under the law. It is also not the case of the petitioner that he made any effort for her rehabilitation and the respondent refused to perform matrimonial obligations. It is an admitted fact that Rukhsati was postponed because the petitioner had to arrange for her VISA of France which he failed to do so despite elapse of reasonable period of time. After solemnization of Nikah respondent became legally wedded wife of the petitioner, therefore, he was bound to maintain her irrespective of the fact that marriage was consummated or not and particularly when a specific stipulation was made in the Nikahnama. Reliance is placed on case reported as Mst. Shamim Akhtar v. Additional District Judge, Sialkot and another (1991 CLC 1142) wherein it has been laid down as under:-

> "There is no dispute between the parties that the Nikah was solemnized on 16th June, 1985 at which time it was agreed that the respondent shall pay maintenance at the rate of Rs.300 per month, to his wife. It is so specifically stipulated in clause 20 of the Nikahnama. This stipulation was not made dependent upon the performance of Rukhsati nor was any such condition attached. In the written statement filed by respondent No.2, there was no averment that despite demand made by him, the wife had refused to perform her marital obligations or to live with him. That being so, the Additional District Judge was clearly in error in setting aside the decree by holding that as Rukhsati had not taken place, the petitioner was not entitled to any maintenance."

Both the learned courts below were thus fully justified in holding that the petitioner was bound to pay maintenance allowance to respondent No.1 during subsistence of Nikah and no exception can be taken therefrom.

7. Now the question arises whether the petitioner paid any maintenance to the respondent. Ammar Ahmad special attorney of the petitioner while appearing in the witness box as DW1 admitted that the petitioner has not paid any maintenance allowance to the respondent. This admission on the part of special attorney of the petitioner is sufficient to believe that the petitioner had never paid any maintenance allowance to respondent No.1. According to ground No.(ii) of section 2 of Dissolution of Marriages Act, 1939 a wife can seek dissolution of marriage if the husband has not paid maintenance allowance for a period of two years. In the present case, the petitioner did not pay maintenance to respondent for more than five years, therefore, both the courts below validly granted decree for dissolution of marriage on the ground of non-payment of maintenance allowance. Learned counsel for the petitioner is unable to convince this Court to take a contrary view.

8. Next issue is with regard to dower. It is an admitted fact that Rs.20,00,000/- was fixed as deferred dower. It is established law that deferred dower becomes due after dissolution of marriage either by death or divorce. Marriage in this case has been dissolved, therefore, deferred dower becomes due on the part of the petitioner. So far as contention of the learned counsel that marriage should have been dissolved on the ground of Khula is concerned, suffice it to say that a wife could

claim dissolution of marriage other than the ground of Khula. In the present case, the respondent sought dissolution of marriage on the ground of non-payment of maintenance allowance and as has been discussed above she successfully proved the same, therefore, there was no reason for the courts below to direct the respondent to forego the dower. It is also not denying fact that marriage was not consummated therefore, the learned courts below rightly decreed half of the dower amount. Learned counsel for the petitioner is unable to point out any illegality or irregularity in the impugned judgments and decrees warranting interference by this Court in its Constitutional jurisdiction.

9. Resultantly, this petition being without any substance is hereby dismissed with no order as to costs.

MH/Z-4/L Petition dismissed.

;